

Salman @ Salman Qureshi v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 31 October 2018 · WRIT - C No. 36187 of 2018 · **Writ disposed; petitioner relegated to clause 6.14 installment application; coercive recovery stayed pending decision.**

HEADNOTE

A consumer seeking to pay electricity arrears in installments cannot have the High Court fix those terms. Installment facility is a matter between the consumer and the licensee under paragraph 6.14 of the U.P. Electricity Supply Code, 2005. The writ was disposed with liberty to apply to the Executive Engineer under clause 6.14, a decision in accordance with law within one month, and a stay of coercive recovery until then. The demand itself was not quashed.

FACTUAL SUMMARY

Salman @ Salman Qureshi filed a writ petition seeking quashing of a demand notice dated 12 October 2017 requiring him to deposit Rs.1,87,802 towards electricity dues. He was willing to pay that sum if the Court fixed installments. The second respondent was the Executive Engineer, Pashchimanchal Vidyut Vitaran Nigam Ltd., Deoband, District Saharanpur. Counsel for the petitioner, the licensee, and the State were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility — High Court will not fix terms

HOLDING

It is not the business of the High Court to fix installments for electricity arrears; that is a matter between the consumer and the Electricity Department. The consumer may apply under paragraph 6.14 of the U.P. Electricity Supply Code, 2005, with an offer to pay the entire amount in installments, and the Executive Engineer shall decide the application in accordance with law. Coercive steps pursuant to the demand notice shall remain stayed until that decision. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Consumer relegated to a clause 6.14 installment application; the High Court declined to fix installment terms itself. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND OF RS.1,87,802 AND THE PRAYER TO QUASH THE DEMAND NOTICE DATED 12.10.2017

The Court did not examine the demand on merits and did not quash it. ¶ 1